

RAV Compliance Gap Analysis & Priority Plan

Companion to: attorney-meeting-compliance-status.md + counsel-meeting-prep.md **Audit date:** 2026-05-05 · **Last refreshed:** 2026-05-12 (Session 66 close) **Status:** Build-now phase **COMPLETE.** All 12 issues that were classified Build-now in the original analysis have shipped end-to-end (code + tests + migrations + PR + merge + DEV+PROD push). Counsel-pending items remain.

Section A — Current state snapshot

A.1 Tally

Classification	Original (2026-05-05)	After Session 66 (2026-05-12)
Build now items	12 (in <code>*Tier 1 Immediate*</code> through <code>*Tier 2 Pre-Launch*</code>)	0 — all shipped ✓
Wait for counsel items	7	7 — unchanged (need C1, C3, C6, C8 answers before code)
Mixed items	5 (build infrastructure, slot in counsel-text later)	5 — infrastructure shipped , slots awaiting C4 / C5 / C7 / C9 / C10 / C11

A.2 12 issues filed → 12 issues shipped

Issue	Subject	Status	PR	Commit
#483	Central disclaimer registry + DisclaimerBlock + 9 placements	✓ Closed	#495	d817eac
#484	About page (Disclaimer 8.3 placement)	✓ Closed	#495	d817eac
#485	"No Timeshare Sales" listing validation	✓ Closed	#496	34a8391
#486	State column on listings (Migration 074)	✓ Closed	#497	c4a1b0d
#487	FL + CA disclosure rendering	✓ Closed	#495 (FL wiring) / #497 (state column)	(CA awaits #493)
#488	Marketplace-facilitator registration tracker (Migration 075)	✓ Closed	#502	9386ba8

#489	Guest Protection Policy product surface	✓ Closed	#508	9259842
#490	MLA notice + ToS arbitration carve-out (Migration 076)	✓ Closed	#520	53d6a1c
#491	Listing accuracy reporting (Migration 077)	✓ Closed	#521	ad16f5c
#492	Fraud reporting (Migration 078)	✓ Closed	#522	a881480
#481	CC&R attestation (Migration 079)	✓ Closed	#523	6535052
#482	robots.txt + scraping policy	✓ Closed	#524	621d751

Plus PR #500 (bccc059) closed the Session-63 migration-CLI-drift cleanup.

A.3 Counsel-pending follow-up issues (open)

Issue	Description	Counsel question(s)
#493	Add CA-specific disclosure (8.7-CA) verbatim text	C10
#494	Flip disclaimer <code>reviewedBy / reviewedDate</code> after counsel sign-off across all 9 registry entries	C9 + C11 (if MLA wording revised)
#480	Umbrella tracker — stays open until #493 + #494 close	—

A.4 What remains unbuilt (counsel-input gated)

Per Tier 3 / Wait-for-counsel classification, these items are NOT in the 12-issue build-now scope. They need a counsel answer before scoping.

- **Host-type classification** (Type 1 / 2 / 3 schema + signup capture + thresholds) — awaits **C4**
- **Rental-frequency / commercial-threshold monitoring cron** — depends on host-type schema; awaits **C4 + C5**
- **State-level licensing gate in FL/CA/HI/NV/AZ** — awaits **C3 + C5**
- **License-number collection + display** for Type 2 / 3 hosts — awaits **C3**
- **Dedicated Stripe Identity / Persona integration** — awaits **C2**
- **Resort ownership verification** (deed / membership-cert upload + admin review) — awaits **C6**
- **Counsel-drafted full ToS / Privacy / 8 policy docs** at `docs/support/policies/*.md` — awaits **C8**

- **Pay Safe architecture written sign-off** for FL § 721.08 / CA § 10145 / HI § 514E-9 — awaits **C1** (no code change expected)

Engineering scope for each is documented below in Tier 3 (Section D).

Section B — Tier 1 (Immediate) follow-up status

I-1 — All 8 disclaimers deployed via central registry · DONE ✓

Shipped in: #495 (PR), commit `d817eac`. Total 9 disclaimers + drift detection + 9 placements + per-disclaimer Vitest tests.

- ✓ `src/lib/disclaimers/registry.ts` — versioned constants for 8.1–8.8 + trademark
- ✓ `<DisclaimerBlock />` component (full / compact / minimal variants)
- ✓ `<StateSpecificDisclaimer />` geo-targeted wrapper
- ✓ `supabase/functions/_shared/disclaimers.ts` email mirror with drift-detection test
- ✓ Placements: homepage, footer, listing pages, Terms § 2 + § 8, About page, Checkout, BookingSuccess, booking-confirmation email
- ● Counsel sign-off pending — #494

I-2 — Limitation-of-Liability text correction in ToS · DONE ✓

Shipped in: #495 inside I-1 wave. `Terms.tsx` § 8 replaced with `<DisclaimerBlock id="8.6" />`. The pre-audit generic "intermediary" text is gone (test asserts).

I-3 — Non-Broker / Non-Agent text in ToS · DONE ✓

Shipped in: #495 inside I-1 wave. `Terms.tsx` § 2 + new `/about` page both render verbatim Disclaimer 8.3 via the registry.

I-4 — Pay Safe / Stripe trust-account architecture · BLOCKED on C1

Code state: ✓ Already deployed. Stripe destination-charge in `process-escrow-release/handler.ts:262–273`. Documented in `docs/payments/PAYSAFE-COMPLIANCE.md`.

Pending: Counsel **C1** — written opinion that this satisfies FL § 721.08 / CA § 10145 / HI § 514E-9. No code change expected based on the answer; counsel sign-off pastes into `PAYSAFE-COMPLIANCE.md` § 7.

I-5 — "No Timeshare Sales" listing validation · DONE ✓

Shipped in: #496 (PR), commit `34a8391`.

- ✓ `src/lib/listingValidation/noSales.ts` — 16-phrase block list, case-insensitive, NFKC normalization
- ✓ Wired into `ListProperty.tsx` `handleSubmit`
- ✓ Error message names matched term + field + links to `/about` for context
- ● DB-level enforcement (BEFORE INSERT trigger) deferred — staff approval workflow remains the secondary defense

Section C — Tier 2 (Pre-Launch) follow-up status

P-1 — State field on `listings` table · DONE ✓

Shipped in: #497 (PR), commit `c4a1b0d`. Migration 074 + backfill + form wiring.

P-2 — Florida-Specific Disclosure (8.7) wired · DONE ✓

Shipped in: #495 (component) + #497 (state field). Renders live on every FL listing + FL checkout.

P-3 — California-Specific Disclosure · DONE (wiring) · PENDING (text — C10)

Shipped in: #495 (component) + #497 (state field). `STATE_DISCLAIMER_MAP.CA` → "8.7-CA". Registry entry intentionally absent until counsel returns text. Tracked in #493.

P-4 — Stripe Tax activation · BLOCKED on #127 (LLC/EIN)

Code state: ✓ Wired (`create-booking-checkout/handler.ts:247`). Env flag `STRIPE_TAX_ENABLED` default OFF. Flipping to TRUE is a 1-hour ops task once #127 lands.

P-5 — Marketplace-facilitator registration tracker · DONE (schema + admin tab) · PENDING (values — C7)

Shipped in: #502 (PR), commit `9386ba8`. Migration 075 + `AdminMarketplaceRegistrations` admin tab. 51 jurisdictions seeded. RAV staff + tax-pro fill in `registration_status` per state once C7 lands.

P-6, P-7 — Verbatim 8.4 + 8.8 in Checkout + email · DONE ✓

Covered by I-1's placement work in #495.

P-8 — Host identity verification dedicated provider · BLOCKED on C2

Current code state: Stripe Connect Express KYC for every Host. Dedicated Stripe Identity / Persona not built. Audit recommendation deferred to counsel decision.

P-9 — Resort ownership verification · BLOCKED on C6

Current code state: Pre-Booked proof workflow verifies reservation, not ownership. CC&R attestation (P-13's new variant — see #481 below) is shipped; ownership verification (deed / membership cert) awaits C6.

P-10 — Host type classification (Type 1 / 2 / 3) · BLOCKED on C4

Schema design ready. `profiles.host_type` enum + `properties_owned` + `annual_rentals_planned`. Onboarding question. Self-classification logic. Awaits C4 thresholds.

P-11 — License number collection & display · BLOCKED on C3 + C4

Depends on: Host-type classification (P-10) + the license-applicability answer per state. Mixed scope — build now, slot in state list later.

P-12 — Guest Protection Policy product surface · DONE ✓

Shipped in: #508 (PR), commit 9259842.

- ✓ New `/guest-protection` page with verbatim 8.5 text + Pay Safe / Stripe explainer
- ✓ `<GuestProtectionBadge />` (badge + banner variants) on PropertyDetail + Checkout + Footer + FAQ
- ✓ Underlying refund logic was already shipped; this added the consumer-facing surface

P-13 — MLA Notice + ToS arbitration carve-out · DONE ✓

Shipped in: #520 (PR), commit 53d6a1c. Migration 076 + signup checkbox + `<MLANotice />` + Terms § 9 carve-out paragraph. Universal protection regardless of self-disclosure (Steines v. Westgate Palace).

- ● Counsel wording confirmation pending — C11

P-14 — Listing accuracy reporting · DONE ✓

Shipped in: #521 (PR), commit ad16f5c. Migration 077 + `<ListingAccuracyReportDialog />` + `AdminListingAccuracyReports` admin tab. Anonymous submissions allowed. RLS gates impersonation.

P-15 — Fraud reporting + response · DONE ✓

Shipped in: #522 (PR), commit a881480. Migration 078 + `<FraudReportDialog />` (Footer + PropertyDetail) + `AdminFraudReports` senior-admin-only tab. Severity + escalation paths separate from resolution states.

P-16 — 2026-05-04 review gaps · DONE ✓

Gap	Status	PR
Trademark / affiliation disclaimer in Footer (gap #1 of 3)	✓ — migrated from inline to registry	Originally #479; restructured in #495
CC&R / rental-restriction attestation in owner onboarding (gap #2 of 3)	✓ — Migration 079 + required checkbox	#523
<code>robots.txt</code> + scraping policy clause in ToS (gap #3 of 3)	✓ — explicit allowlist + Terms § 7.1 with CFAA citation	#524

Section D — Tier 3 (Post-Launch) status

PL-1 — Rental frequency monitoring cron · BLOCKED on C4 + C5

Cron infrastructure pattern proven via `auto-confirm-checkins` + `sla-monitor` in Migration 073. New cron `compliance-threshold-monitor` would run nightly, flagging Hosts who cross thresholds. ~12h engineering once C4 + C5 land.

PL-2 — State-level licensing gate · BLOCKED on C5

Trivial implementation once gate behavior is decided (hard-block vs soft-warn vs route to manual review).

PL-3 — Automated tax remittance (TaxJar / Avalara / Puzzle.io) · DEFERRED

Engineering ~8-16h, deferred until volume exceeds \$5K/mo and #127 lands. Manual remittance until then.

PL-4 — Cyber-liability + fraud insurance · OUT OF ENGINEERING SCOPE

Business / insurance-broker engagement.

PL-5 — State compliance calendar · PARTIAL — augments P-5

`marketplace_registrations.next_return_due` column already exists (Migration 075). Daily-summary email integration (~2h) deferred until C7 fills in values worth surfacing.

PL-6 — ARDA membership / legislative tracking · OUT OF ENGINEERING SCOPE

Trade association engagement.

PL-7 — Formal legal audit of ToS / Privacy / listing agreement · BLOCKED on C8

Eight policy drafts at `docs/support/policies/*.md` (`status: draft`, blocked on #80) await counsel.

Section E — Counsel-pending decision matrix

See `counsel-meeting-prep.md` § 4 for the full Q&A version. Quick reference of code dependencies:

Counsel question	Engineering follow-up	Estimated effort post-decision
C1 (Pay Safe sign-off)	Paste opinion into <code>PAYSAFE-COMPLIANCE.md</code> § 7	30 min, no code
C2 (Stripe Identity sufficiency)	If "need dedicated": ~1-2 day integration	0h (default) or 8-16h
C3 (license per state)	If license required: build license-number flow	0h (exempt) or 5h per state-tier
C4 (host-type thresholds)	Set threshold constants; build P-10 schema if not yet built	6h once decided
C5 (gate behavior)	Wire gate in <code>ListProperty.tsx</code>	3h once decided
C6 (ownership proof types)	Build ownership-verification flow	6-12h
C7 (state-by-state values)	RAV staff data entry — no engineering	0h
C8 (policy drafting)	Replace drafts; flip status + push via <code>sync-support-docs.yml</code>	1-2h (mechanical)
C9 (disclaimer approval)	Flip <code>legalReviewRequired</code> + fill <code>reviewedBy/reviewedDate</code> in registry	1h (PR #494)
C10 (CA text)	Add <code>"8.7-CA"</code> registry entry	30 min (PR #493)
C11 (MLA wording)	Edit Terms § 9 carve-out paragraph + test	30 min
C12 (legislation prioritization)	Schedule follow-up issues per priority	varies

Section F — Revision history

Date	Author	Change
2026-05-05	Claude (Session 66 audit)	Initial gap analysis after 7-domain audit
2026-05-12	Claude (Session 66 close)	Refreshed to reflect all 12 build-now items shipped; counsel-pending items remain

End of document — Version 2.0 — 2026-05-12 (post Session 66)

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